



Maritime &
Coastguard
Agency

Guidance

MSN 1915(F) Merchant Shipping (Work in Fishing Convention) (Medical Certification) Regulations 2018 Exemption

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Summary

The Secretary of State is granting an exemption under regulation 14 of the Merchant Shipping (Work in Fishing Convention) (Medical Certification) Regulations 2018 (The Regulations) with effect from 27 March 2024.

1. Exemption

1.1 In accordance with regulation 14 of the Regulations, existing fishers working on fishing vessels of 10 metres and under (registered length) ^[footnote 1] that are not normally at sea for more than 3 days and that meet the conditions set out in paragraphs 1.2, 1.3, 1.4 and 1.5 are exempt from the requirements to hold Medical Certification set out in regulations 4 and 5 of the Regulations.

1.2 For the purpose of this exemption, “existing fishers” means those fishers who were working for 4 weeks or more on a UK registered fishing vessel of 10 metres and under during the period 30 November 2021 and 29 November 2023.

1.3 Fishers wishing to make use of this exemption will need to demonstrate they were working on a relevant fishing vessel via one or more of the following means: appropriately dated evidence of completion of SEAFISH Basic Health and Safety, or Sea service Testimonials e.g. from skippers/the fishing vessel owners/managers, or if you are the owner of the vessel, the registration document for the vessel including fishing vessel number, and your name on the document as the owner, or other relevant evidence.

1.4 Fishers should be able to provide the evidence described in paragraph 1.3 to the MCA on request.

1.5 Fishers that do not engage in fishing on fishing vessels of 10 metres and under for a period of five consecutive years from the date of this notice will no longer be eligible for this exemption.

1.6 Skippers are reminded that they have a responsibility for the safety of crew on board the Vessel and the safe operation of the Vessel, and are therefore expected to “manage crew in a manner which respects safety and health” (section 6.2.3.2 of The Code of Practice for the Safety of Small Fishing Vessels (<https://www.gov.uk/government/publications/the-code-of-practice-for-the-safety-of-small-fishing-vessels-of-less-than-15m-length-overall>)). In cases where they have fishers covered by this exemption working on their vessels this expectation would include making appropriate arrangements for those with significant known medical conditions.

More information

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1. as defined by the Fishing Vessels (Codes of Practice) Regulations
2017



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